

Tentative Rulings for September 9, 2026 Department M301

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 538 5472**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2500991	SANDOVAL VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO TAX COSTS

Tentative Ruling: Motion to Tax Costs is Denied. OSC re Dismissal after Conditional Settlement is continued to 10-27-26 8:30 am M301.

Except as otherwise expressly provided by statute, the party who prevails in any action or proceeding “is entitled as a matter of right to recover costs.” (C.C.P. § 1032(b).)

Code of Civil Procedure section 1033.5(a) contains a list of items specifically allowed as recoverable costs, and section 1033.5(b) contains a list of items that “are not allowable as costs, except when expressly authorized by law.” An item neither specifically allowable under subdivision (a) nor prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (C.C.P. § 1033.5(c)(4).) In particular, the item “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “shall be reasonable in amount.” (C.C.P. § 1033.5(c)(2) and (3).)

Under the Song-Beverly Act “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794(d).) “[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase ‘costs and expenses’ to cover items not included in ‘the detailed statutory definition of “costs” ’ set forth in Code of Civil Procedure section 1033.5.” (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42.) These include out-of-pocket expenses such as filing fees, expert witness fees, and other fees to make litigation accessible to consumers. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138 [disapproved of on other grounds by *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 204-205].)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) “A verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Ladas, supra*, 19 Cal.App.4th at 774.)

Here, the underlying action was resolved after Plaintiff accepted Defendant’s § 998 offer. C.C.P. § 998 provides: “Not less than 10 days prior to commencement of trial . . . , any party may serve an offer in writing upon any other party to the action to allow judgment to be taken or an award to be entered in accordance with the terms and conditions stated at that time. The written offer shall include a statement of the offer,

containing the terms and conditions of the judgment or award, and a provision that allows the accepting party to indicate acceptance of the offer by signing a statement that the offer is accepted. Any acceptance of the offer . . . shall be in writing and shall be signed by counsel for the accepting party or, if not represented by counsel, by the accepting party.” (C.C.P. § 998(b) [emphasis added].)

Accordingly, the terms of Defendant’s § 998 offer govern the parties’ settlement, including Plaintiff’s recoverable costs. Although neither party attaches a copy of the § 998 offer, Defendant acknowledges that the offer provided for “Plaintiff’s attorney fees and costs to be resolved by noticed motion or agreement.” (Motion, p. 3.)

Jury Fees. Defendant argues that Plaintiff should not recover \$150.00 in jury fees because the case did not go to trial. However, the trial court considers “whether the costs were reasonably necessary to litigating the case at the time they were incurred.” (*Garcia v. Tempur-Pedic North America, LLC* (2024) 98 Cal.App.5th 819, 902.) Here, Plaintiff posted jury fees on July 22, 2025, but did not accept the C.C.P. § 998 offer until over six months later, on February 11, 2026. Accordingly, the jury fees were reasonably necessary at the time they were incurred.

“Other” Fees – Contract Attorney. Defendant then argues that Plaintiff should not recover \$75.00 for a contract attorney to appear at the Trial Setting Conference, asserting that the expense was merely convenient rather than necessary. However, Plaintiff contends that the charge is substantially less than lead counsel’s hourly rate. (Opp., p. 4.)

Plaintiff’s corresponding motion for attorney fees states that counsel’s fee is \$525/hour, and the attached billing records do not include a claim for appearing at the Trial Setting Conference. (Jacobson Decl. ISO Motion for Attorney Fees, ¶ 6 and Exh. 44.) As such, the only time Plaintiff is charging for the appearance is through its memorandum of costs. “ABA Formal Opinion 00-420 specifically deals with surcharging a client when using a contract attorney” and “directs that if the legal services of a contract attorney are billed to the client as an expense or cost, the client may be charged only the cost directly associated with the services, including expenses incurred by the billing lawyer to obtain and provide the benefit of the contract lawyer’s services. No surcharge is allowed unless the client agrees otherwise.” (*In re Wright* (C.D. Cal. 2003) 290 B.R. 145, 153.) Here, Plaintiff is only claiming \$75.00 as a cost for the appearance of the contract attorney. Accordingly, the cost was reasonably incurred and “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation,” and therefore allowable under C.C.P. § 1033.5(c)(2).

2.

CASE #	CASE NAME	HEARING NAME
CVME2508170	WARRIOR MACHINERY, LLC VS Socal SHAKER PLATES & CONSTRUCTION SITE SERVICES, LLC	MOTION TO STRIKE/DEMURRER TO 1 ST AMENDED COMPLAINT

Tentative Ruling: Demurrer sustained to the 1st, 2nd, 3rd, 4th, 6th, 7th, and 8th causes of action on grounds of failure to state facts sufficient to constitute a cause of action. Special Demurrer sustained to the 1st and 6th causes of action. Motion to Strike is Moot. Plaintiff granted 20 days leave to amend.

This case arises from a dispute between Warrior and Socal Shaker whereby Socal Shaker purportedly entered into an agreement with Warrior to rent certain heavy equipment for use in a construction project, located at 37701 Warren Road, Winchester, California 92596 ("Project").

In January 2025, Socal Shaker and Warrior, by and through its authorized Sales Representative, entered into an agreement to provide Socal Shaker with one 85,000 lbs. excavator ("Equipment") for use in the Project. Implied in the agreement was the mutually understood term that the Equipment would be operational for its intended use. According to Socal Shaker, immediately following delivery of the Equipment, on or around January 4, Socal Shaker became aware of substantial pre-existing damage and defects to the Rental Equipment. On January 6, 2025, Socal Shaker notified Warrior of the substantial pre-existing damage, accompanied by photos evidencing the damage. Socal Shaker additionally requested that Warrior provide a service technician to the Project to inspect and/or repair the damaged Equipment. From approximately January 6, 2025 through January 29, 2025, Socal Shaker made repeated efforts to obtain assistance from Warrior related to the damages and malfunctioning aspects of the Equipment, to no avail. In fact, Warrior did not have any technician contact Socal Shaker until January 29, 2025, resulting in substantial delays to the Project, including days where the Rental Equipment was completely inoperable.

In or around March 2025, Socal Shaker returned the Equipment to Warrior in the exact same condition as it was delivered to the Project in January 2025. Per Socal Shaker, on March 21, 2025, Socal Shaker received an invoice from Warrior, whereby Warrior noted that the damage to the Equipment was caused by Socal Shaker, despite its knowledge that the Equipment was delivered to the Project with pre-existing damage and malfunctioning components.

On July 22, 2025, Warrior filed its Complaint against Socal Shaker for (1) Breach of Contract, (2) Open Book Account, (3) Account Stated, (4) Trespass to Chattel, (5) Enforcement of Public Works Payment Bond, (6) Unjust Enrichment, (7) Negligence, (8) Conversion, and (9) Declaratory Relief.

On April 15, 2026, the Court sustained a demurrer to the 1st, 2nd, 3rd, 4th, 8th and 9th causes of action, with leave to amend. The court also deemed a concurrent motion to strike moot.

On April 29, 2026, a First Amended Complaint was filed for: (1) breach of contract; (2) open book account; (3) account stated; (4) trespass to chattel; (5) unjust enrichment; (6) negligence; (7) conversion; (8) declaratory relief; (9). breach of written personal guaranty; and (10) enforcement of public works payment bond.

* * *

Socal Shaker now demurrers to the 1st, 2nd, 3rd, 4th, 6th, 7th, and 8th causes of action on grounds of failure to state facts sufficient to constitute a cause of action. In addition, the demurer is made on grounds of uncertainty as to the 1st and 6th causes of action.

In Opposition, Plaintiff Warrior contends that the FAC cured each and every technical pleading defect identified in the Court's prior tentative ruling of April 14, 2026. The contract is now explicitly pled as written, the Glendora property has been entirely removed to unify the "Project" definitions, and each cause of action alleges robust ultimate facts.

In Reply, Socal Shaker essentially contends that the subject causes of action are well-pled.

Meet and Confer - CCP §§ 430.41 and 435.5 requires a meet and confer process via phone, videoconferencing, or in person before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §§ 430.41(a)(3), 435.5(a)(3).) The Declaration of Stephen Kitagawa indicates that the parties met and conferred telephonically on June 10, 2026, and that Warrior's counsel was unwilling to further amend the pleading. (Declaration of Stephen Kitagawa, ¶¶ 11, 12,) Accordingly, Socal Shaker has complied with its statutory meet and confer obligation.

Standard - A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the pleading will also be accepted as true and, if contrary allegations appear in the pleading, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the pleading fails to state a cause of action, the court must grant the leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f)). Demurrers for uncertainty will only be sustained where the defendant

cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Id.*).

1st cause of action for breach of contract - "A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiffs performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach." (*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.) To sufficiently allege a contract's legal effect, plaintiff must allege the making of the contract, and then the substance of its relevant terms. (4 Witkin, Cal. Proc. (5th 2008) Plead. §519.)

While not necessary to plead a contract's terms verbatim in the pleadings, "[t]hat a contract may be pleaded in its legal effect and need not be set forth in haec verba is thoroughly settled." (*Pneucrite Corp. v. U.S. Fidelity & Guaranty Co.* (1935) 7 Cal.App.2d 733, 741–742.) To sufficiently allege a contract's legal effect, plaintiff must allege the making of the contract, and then the substance of its relevant terms. (4 Witkin, Cal. Proc. (5th 2008) Plead. §519.)

Failure to State Facts and Uncertainty (seemingly grouped together in motion) -

The FAC is uncertain as to the nature and contractual basis of the alleged breaches. Plaintiff alleges several purported breaches, including: (a) nonpayment of rental charges, fees, and taxes; (b) nonpayment of repair invoice SVIN4405; (c) return of equipment in a condition allegedly exceeding ordinary wear and tear; (d) nonpayment of late fees at the rate of 1.5% per month; and (e) failure to maintain additional-insured coverage. (FAC, ¶¶ 39(a)–(e).) Yet the FAC fails to identify which specific agreement, transaction, invoice, or contractual provision gives rise to each alleged obligation. The FAC fails to allege the text of Warrior's "written rental terms and conditions" are purportedly incorporated into each transaction, thus creating ambiguous and uncertain claims related to the claimed breach of contract by Socal.

The FAC aggregates multiple writings and transaction groupings under an uncertain, umbrella "Rental Contracts" theory, without cleanly identifying which written terms govern which particular invoice and any supposed breach by Socal. Thus, such uncertain allegations create uncertainty and ambiguity as to the operative agreement(s) for each charge category and alleged breach theory (e.g., late fees, insurance obligation, damage-waiver, repair invoice). (FAC, ¶¶ 22–24 (defining "Rental Contracts" as a composite of multiple writings and order numbers), see also FAC ¶ 39 (pleading five categories of alleged breaches in the aggregate.)

The FAC likewise fails to allege the material dates necessary to identify the alleged breaches, including the relevant rental periods, dates of nonpayment, dates on which any repair obligation allegedly arose, or the date on which Defendant allegedly failed to maintain the required insurance coverage. Nor does the FAC adequately allege facts showing Defendant's assent to the purported "written rental terms and conditions" governing each transaction.

1st (breach of contract), 2nd (open book account) and 3rd (account stated) causes of action

Uncertainty - A demurrer for uncertainty may be sustained when the complaint is drafted in a manner that the defendant cannot reasonably respond, i.e., the defendant cannot determine what issues must be admitted or denied, or what causes of action are directed against the defendant. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Here, the FAC blends open-book and account-stated theories with the same composite “Rental Contracts” as alleged under its breach of contract cause of action, resulting in unclear and ambiguous allegations. Further, such ambiguity and uncertainty in the plead facts precludes Socal from reasonably interpreting or determining whether Warrior seeks to recover purely on an account theory independent of its contract claim, or as an alternative theory premised entirely on the same writings.

It cannot be determined from the pleading what specific balance and assent are alleged for Warrior’s account stated claim, beyond the face of the attached invoices. The FAC alleges a Customer ID (CUS0639), a systematized account, credits SCM0719 and SCM0720, and a principal balance of \$37,562.70, but entirely fails to allege facts showing Socal’s express assent to a “balance struck” beyond retention of invoices. Moreover, the FAC fails to allege specific facts which segregate repair charges (SVIN4405) from rental charges for account-stated purposes (FAC, ¶¶ 24(d), 25, 43-45, 48-49), thus preventing Socal from being able to determine the particular claims made against it by Warrior under these theories.

These causes of action are uncertain as to (1) whether the account based claims are pled in the alternative to its contract claim, (2) the specific dates, content, and manner of the alleged assent to a “balance struck,” and (3) the delineation of which items (rental vs. repair) are included in the claimed account(s).

4th cause of action for trespass to chattel - “Trespass to chattel, although seldom employed as a tort theory in California. . . lies where an intentional interference with the possession of personal property has proximately caused injury.” (*Thrifty-Tel, Inc. v. Bezenek* (1996) 46 Cal.App.4th 1559, 1566-1567.)

The FAC alleges that Warrior consented to limited use consistent with rated specifications and ordinary operations, and that Socal “intentionally” operated the excavator outside specifications causing impact damage. However, as noted by Socal, the facts as plead are overly generalized and vague, without specifying any particularized conduct, dates, operators, or circumstances that demonstrated Socal’s intentional interference with possession. (FAC, ¶¶ 30, 31, 54-56). Aside from the conclusory claims of “intentional” conduct, the facts as plead in the FAC simply demonstrate nothing beyond mere negligent operation of the machinery by Socal. Warrior’s failure to allege any specific facts demonstrating this requisite intentional interference with its possession of the rental equipment is fatal. Trespass to chattel is an intentional tort, and without any factual allegations supporting such intent to interfere, this cause of action fails.

6th cause of action for negligence - Where a negligence cause of action incorporates the same factual allegations as the breach of contract claim and simply affixes the word “negligence” to the same conduct, it fails to state a cognizable cause of action. (*Rufini v. CitiMortgage, Inc.* (2014) 227 Cal.App.4th 299). Where the only damages alleged are economic, the economic loss rule bars recovery in negligence, absent an independent duty and physical injury or property damage. (*Moore v. Centrelake Medical Group, Inc.* (2022) 83 Cal.App.5th 515).

In the FAC, Warrior pleads negligence based on “equipment damage” during its contractual rental possession, but fails to identify any independent duty or noncontractual standard of care distinct from the contractual rental terms. Rather, Warrior’s cause of action for negligence alleges a generic duty to use reasonable care, rather than evidencing any articulable legal duty between the parties that is separate and distinct from the terms of the “Rental Contracts” (FAC, ¶¶ 66– 70). Thus, the FAC is uncertain and ambiguous as to the basis for any alleged “duty” between the parties that would extend beyond contractual obligations.

Further, Warrior pleads purely economic damages in the form of “repair costs” and “loss of use” damages, which are directly tied to the same transactions and equipment serving as the subject of the underlying “Rental Contracts” (FAC, ¶¶ 66–70). Thus, based on the economic loss rule, these damages are duplicative as those sought pursuant to Warrior’s contract claims, and Warrior is therefore barred from seeking recovery under a tort theory for its purely contractual economic losses.

7th cause of action for conversion - “To prove a cause of action for conversion, the plaintiff must show the defendant acted intentionally to wrongfully dispose of the property of another.” (*Duke v. Superior Court* (2017) 18 Cal.App.5th 490, 508.) “[Conversion] must be knowingly or intentionally done,... Because the act must be knowingly done, ‘neither negligence, active or passive, nor a breach of contract, even though it result in injury to, or loss of, specific property, constitutes a conversion.’ ” (*Taylor v. Forte Hotels Int’l.* (1991) 235 Cal.App.3d 1119, 1124.) “[T]he law is well settled that there can be no conversion where an owner either expressly or impliedly assents to or ratifies the taking, use or disposition of his property.” (*Farrington v. A. Teichert & Son, Inc.* (1943) 59 Cal.App.2d 468, 474.)

Here, the FAC alleges intentional operation beyond the authorized scope, but no facts evidencing any wrongful retention, refusal to return, or dispossession by Socal tantamount to a taking. (FAC ¶¶ 73-75). Mere unintentional damage to an item of property simply cannot be grounds for conversion, particularly where no facts are plead to demonstrate that SOCAL undertook any intentional act toward the rental equipment.

Finally, Warrior’s conversion claim fails because it expressly consented to Socal’s taking of the equipment for use in the Lake Skinner project. This express assent to the taking and use of the rental equipment simply eliminates any claim that Socal intentionally interfered with Warrior’s possession. In fact, Warrior temporarily contracted away its right to the possession of that rental equipment for the time period.

8th cause of action for declaratory relief - Declaratory relief is available where an “actual controversy” exists relating to the parties’ respective rights and duties. (CCP §

1060.) An “actual controversy” exists where the parties have adverse positions on an existing legal relationship, and a judicial declaration would have a practical impact. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 79–80.)

The controversy must be justiciable, and to be justiciable, it must be ripe. (*Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582.) “A two-pronged test is used to determine ripeness of a controversy: (1) whether the dispute is sufficiently concrete so that declaratory relief is appropriate; and (2) whether the parties will suffer hardship if judicial consideration is withheld.” (*City of Santa Monica v. Stewart* (2005) 126 Cal.App.4th 43, 64.)

Here, The FAC impermissibly seeks declarations on enforceability, scope of guaranty, effect of damage-waiver charges, insurance obligations, and bond coverage, while additionally seeking declarations on issues such as whether the Credit Application and Rental Contracts are enforceable, whether the guaranty applies, whether damage-waiver charges affect liability for repair charges, and whether bond coverage extends to categories of charges. These issues are outside of the scope of declaratory relief, and Warrior must narrow its scope to those actual, necessary declarations, rather than reiterate inappropriate declarations duplicative of the adjudication of existing causes of action. Warrior must further identify the present controversy between specific parties requiring a declaration, distinct from a money judgment.

Here, the deficiencies included in the FAC and the currently existing disputes related to key factual aspects of the claims render the pleading insufficiently definite to allow for declaratory relief.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2303476	LEBLANC VS TAYLOR MORRISON HOME CORP.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Motion to Compel Arbitration is granted as to plaintiffs Robert LeBlanc, Elena LeBlanc, Defendant WLH Communities -Alderwood LLC, and Defendant Leonard’s Roofing. Remainder of case is stayed pending arbitration.

This action arises from injuries sustained by Plaintiffs Robert LeBlanc (“Robert”), Elena Marie LeBlanc (“Elena”), John Roe 1, a minor, and Jane Roe 2, a minor (“Minor Plaintiffs,” collectively, “Plaintiffs”) at their home (“Property”), which was built by Defendant WLH Communities – Alderwood, LLC (“WLH”).

In the Second Amended Complaint (“SAC”), Plaintiffs allege that they took possession of the Property on April 27, 2021. Plaintiffs allege that several months after living at the Property, they began experiencing numerous symptoms, including severe abdominal pain, migraines, nausea, blurred vision, diarrhea, constipation, etc. Plaintiffs allege that they noticed intermittent sewage or foul smells in November 2022, which they reported to Defendant Taylor Morrison (“TM”).

On January 14, 2023, Plaintiffs allege that they reported a leak to TM, who inspected the Property on January 21, 2023, and discovered that whoever had installed the pipe

had intentionally broken underneath the roofline with insulation on top of the pipes to prevent visual inspection of the broken pipes. On February 3, 2023, a City inspector investigated and notified Plaintiffs that the plumbing was an “unsafe and substandard installation,” as it “appears the plumbing vents have been intentionally cut and covered.” Plaintiff contends that TM fixed the leak that same day, and Plaintiffs’ symptoms began to substantially improve within days.

The operative complaint is the SAC, which Plaintiffs filed on February 20, 2026, against WLH and Defendant Leonard’s Roofing (together, “Defendants”), asserting causes of action for: (1) negligence; and (2) private nuisance.

On June 10, 2026, the Court sustained WLH’s unopposed demurrer to the SAC and granted Plaintiffs 20 days leave to amend the SAC to appoint a guardian ad litem for Minor Plaintiffs.

On July 24 and 30, 2026, the Court signed orders appointing guardians ad litem for Minor Plaintiffs.

On July 29, 2026, WLH filed an ex parte application to dismiss Minor Plaintiffs’ claims for failing to timely amend the SAC after the demurrer was sustained. On July 30, 2026, the Court denied WLH’s ex parte application, and granted Plaintiffs another 10 days leave to amend the SAC.

As of September 4, 2026, Plaintiffs have failed to amend the SAC to properly name Minor Plaintiffs as parties to this action through their guardians ad litem.

WLH now moves to compel arbitration and stay the action pending completion of arbitration. WLH contends the arbitration agreement is governed by the Federal Arbitration Act (“FAA”), and asserts that the arbitration agreement is not unconscionable because Plaintiffs had time to review the agreement. WLH also argues that the arbitration agreement covers subcontractors, such as co-defendant Leonard’s Roofing, and further asserts that Leonard Roofing’s construction contract contains an arbitration provision. Accordingly, WLH contends that the parties are all mutually bound to arbitrate their claims against each other.

In opposition, Plaintiffs argue that WLH waived its right to seek arbitration by delaying the motion, and further asserts that Minor Plaintiffs are not subject to the arbitration agreement.

In reply, WLH argues that Plaintiffs delayed in serving each of the three complaints, and contends that Minor Plaintiffs are not currently parties to the action because Plaintiffs have not amended the SAC. WLH further argues that staying the action would not result in inconsistent rulings because the issues of causation and damages are unique to each plaintiff.

Standard - The court must grant the motion to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (C.C.P. §

1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The moving party bears the burden of proving the existence of a valid arbitration agreement, which can be met by attaching a copy of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.) The burden then shifts to the opposing party to prove any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2015) 55 Cal.4th 223, 236.)

Existence of Arbitration Agreement - The motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (C.R.C. Rule 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) This rule does not require the movant to authenticate the agreement or do anything more than allege its existence and attach a copy. (*Condee, supra*, 88 Cal.App.4th at 218-219.) Once this is done, the burden shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Ibid.*)

Moving Party's Burden - The moving party bears the burden of proving the existence of a valid arbitration agreement, which can be met by attaching a copy of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.)

Plaintiffs Robert and Elena

WLH submits a copy of a Purchase Agreement (“Agreement”) executed by Robert and Elena on October 11, 2020, and by WLH on October 16, 2020. (Kurtz Decl., Exh. A [“Agreement”].) The Agreement contains an arbitration provision that covers “ANY AND ALL CLAIMS, CONTROVERSIES, BREACHES OR DISPUTES BY OR BETWEEN THE BUYER AND SELLER, ARISING OUT OF OR RELATED TO THIS PURCHASE AGREEMENT, THE PROPERTY, THE COMMUNITY, THE SALE OF THE PROPERTY BY SELLER, OR ANY TRANSACTION RELATED HERETO, WHETHER SUCH DISPUTE IS BASED ON CONTRACT, TORT, STATUTE, OR EQUITY ... WHETHER SUCH DISPUTE ARISES BEFORE OR AFTER CLOSING (EACH A “DISPUTE”), SHALL BE ARBITRATED PURSUANT TO THE FEDERAL ARBITRATION ACT...” (Agreement, ¶ 11.2.1.)

Accordingly, WLH has met its initial burden to show that a written agreement to arbitrate between itself, Robert, and Elena

Co-Defendant Leonard’s Roofing

WLH also satisfies its burden to show that a written agreement exists between the parties and Leonard’s Roofing, as the Agreement also states: “EITHER BUYER OR SELLER MAY JOIN SUBCONTRACTORS AND SUPPLIERS INVOLVED IN THE DESIGN AND CONSTRUCTION OF THE IMPROVEMENTS TO THE PROPERTY. THIS ARBITRATION PROVISION SHALL INURE TO THE BENEFIT OF, AND BE ENFORCEABLE BY, SELLER AND SELLER’S AFFILIATED AND RELATED ENTITIES, AND EACH OF THEIR RESPECTIVE EMPLOYEES, OFFICERS,

DIRECTORS, AGENTS, REPRESENTATIVES, CONTRACTORS, SUBCONTRACTORS...” (Agreement, ¶ 11.2.3.)

WLH also attaches a copy of the Master Subcontractor Agreement (“MSA”) executed by Leonard’s Roofing, which states: “In the event Contractor and any homeowner enter into an agreement containing an alternative dispute resolution procedure, including without limitation, mediation, arbitration, or judicial reference, Subcontractor agrees to be bound by and participate in any such alternative dispute resolution procedure for any and all disputes, including but not limited to, Defect Claims and Other Claims, relating directly or indirectly, to this Agreement. Upon request from Subcontractor, Contractor shall provide Subcontractor with a copy of any alternative dispute resolution procedure agreed to between Contractor and any homeowner, which alternative dispute resolution procedure is incorporated herein by reference and made part of this Agreement.” (Kurtz Decl., Exh. B [“MSA”], ¶ 9.7.)

Thus, WLH has satisfied its initial burden to show that a written agreement to arbitrate exists between WLH, Robert, Elena, and Leonard’s Roofing.

Opposing Party’s Burden - The burden now shifts to Plaintiffs to prove any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2015) 55 Cal.4th 223, 236.)

Plaintiffs do not challenge the authenticity of the Agreement, or argue that it does not apply to Robert or Elena. Leonard’s Roofing does not oppose this motion, and acknowledges in the third affirmative defense in its Answer that it is bound to arbitrate any homeowners disputes. (Answer, p. 2.) Thus, WLH has established that a valid written agreement to arbitrate exists between WLH, Robert, Elena, and Leonard’s Roofing.

However, Plaintiffs argue that WLH has waived its right to compel arbitration through its dilatory conduct (see below), and contends that the Agreement does not apply to Minor Plaintiffs.

FAA Preemption -The Federal Arbitration Act (“FAA”) generally governs arbitration in written contracts involving interstate commerce. (9 U.S.C. § 2.) To assure uniform results as to arbitrability of disputes subject to the FAA, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the FAA applies has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct.* (2005) 127 Cal.App.4th 197, 211–14.)

Alternatively, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA, even if there is no interstate commerce. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

Here, the terms of the Agreement expressly states that it is governed by the FAA. (Agreement, ¶ 11.2.2 [“BUYER AND SELLER EXPRESSLY AGREE AND ACKNOWLEDGE THAT THIS PURCHASE AGREEMENT INVOLVES AND

CONCERNS INTERSTATE COMMERCE AND IS GOVERNED BY THE PROVISIONS OF THE FEDERAL ARBITRATION ACT (9 U.S.C. §1 ET SEQ.).”] Accordingly, the FAA applies to the Agreement.

Waiver - “Section 2 of the FAA provides that arbitration agreements ‘shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract’ However, like any contract right, the right to arbitrate may be waived - either expressly or by implication.” (*Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 964 [citations omitted].)

“The Supreme Court has made clear that the ‘strong federal policy in favor of enforcing arbitration’ agreements’ is based upon the enforcement of contract, rather than a preference for arbitration as an alternative dispute resolution mechanism. Thus, the question of whether there has been waiver in the arbitration agreement context should be analyzed in much the same way as in any other contractual context. The essential question is whether, under the totality of the circumstances, the defaulting party has acted inconsistently with the arbitration right.” (*National Foundation for Cancer Research v. A. G. Edwards & Sons, Inc.* (D.C. Cir. 1987) 821 F.2d 772, 774 [citations omitted].)

“*Peterson* identified the following factors as relevant to assessing waiver claims: (1) whether the party’s actions are inconsistent with the right to arbitrate; (2) whether “the litigation machinery has been substantially invoked” and the parties “were well into preparation of a lawsuit” before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) “whether important intervening steps [e.g., taking advantage of judicial discovery procedures not available in arbitration] had taken place”; and (6) whether the delay “affected, misled, or prejudiced” the opposing party.’ And, this test is substantially similar to the test adopted by most federal circuit courts.” (*Davis, supra*, 84 Cal.App.5th at 964-965 [citations omitted].) However, the United States Supreme Court has now clarified that “under the FAA, courts may not ‘condition a waiver of the right to arbitrate on a showing of prejudice.’” (*Id.* at 965, *quoting Morgan v. Sundance, Inc.* (2022) 596 U.S. 411.)

In *Davis*, the Court of Appeal held that the defendant had waived its right to compel arbitration where it delayed 17 months before seeking arbitration, gave no adequate explanation for its lengthy delay, appeared at a case management conference, demanded a trial, gave its own estimate of the time for trial, and represented that it was willing to participate in discovery, depositions, and expert discovery. (84 Cal.App.5th at 965.) Also, after the court set a jury trial date, defendant engaged in rounds of discovery, responded to written discovery, met and conferred on responses, and served supplemental responses. (*Id.* at 969-970.) Defendant “never once suggested that discovery should be barred because the case had to be arbitrated.” (*Id.* at 970.) Furthermore, defendant never responded to or joined in the co-defendant’s motion to stay the proceedings, and did not oppose plaintiff’s multiple requests to continue the trial and in fact it stipulated to a trial continuance so that it could complete discovery. (*Ibid.*) Again, defendant failed to inform the court that it intended to compel arbitration.

“The act of preserving its rights to a jury trial and discovery while remaining silent on arbitration was inconsistent with a right to arbitrate.” (*Ibid.*) “In light of Shiekh’s nearly one-and-a-half-year delay in moving to compel arbitration, request for trial, active participation in discovery, acquiescence to the trial and discovery schedule, and court appearances, the trial court had ample evidence from which to conclude Shiekh’s actions were inconsistent with an intent to arbitrate. Indeed, other courts have found that similar, or even shorter, periods of delay, and comparable litigation activity, were sufficient to justify a waiver of arbitration.” (*Ibid.* [citations omitted].)

In *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, the California Supreme Court made clear that the same policy applies to cases under the California Arbitration Act (Code Civ. Proc., § 1281 et seq. [“CAA”]). Thus, whether the procedural requirements of the FAA or the CAA apply, the determination of whether a moving party has “lost its right to compel arbitration as a result of its litigation-related conduct is governed by generally applicable state law contract principles”, which do not require a showing of prejudice to establish waiver. (*Id.*) *Quach* also clarified how courts are to analyze a waiver issue without the *St. Agnes* prejudice requirement. (*Id.*, at 573.) “In ruling on a motion to compel arbitration, a court should separately evaluate each generally applicable state contract law defense raised by the party opposing arbitration. It should not lump distinct legal defenses into a catch-all category called ‘waiver.’” (*Id.*, at 583-584.) “Instead, a court should be careful to consider only those factors that are relevant to the specific state law defense the party resisting arbitration has raised.” (*Id.*, at 584.)

In determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration; that is, courts should apply the same procedural rules that they would apply to any other contract. (*Quach, supra*, 16 Cal.5th at 583.) To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. (*Id.* at 584.) A party may lose its right to compel arbitration as a result of its litigation conduct. (*Id.* at 583.) Simply responding to discovery and attending a status conference is not sufficient. In *Quach*, the Court found the party compelling arbitration caused undue delay, gamesmanship, and propounded discovery – suggesting it did not intend to seek arbitration prior to moving for same. (*Id.* at 586.)

Here, Plaintiffs filed the initial Complaint on April 27, 2023. Plaintiffs contend that WLH engaged in extensive meet-and-confer efforts regarding amendments to Plaintiffs’ pleadings, and appeared at the case management conference in November 2025, but failed to disclose its intent to enforce the arbitration provisions in the Agreement until March 12, 2026, nearly three years after Plaintiffs initiated this action. However, Plaintiffs’ argument does not establish when WLH knew of its right to arbitrate to support that WLH intentionally relinquished or abandon such right.

Further, WLH argues that much of the delay can be attributed to Plaintiffs, as they did not serve the Complaint until January 29, 2024, and did not serve the First Amended Complaint (“FAC”) until November 12, 2024. (Kurtz Decl. II, ¶ 5.) WLH argues that

despite acknowledging the deficiencies in the FAC in February 2025, Plaintiffs did not serve the SAC until one year later on February 20, 2026. (Kurtz Decl. II, ¶ 6-7.) Further, the evidence shows that WLH did not file an Answer until it answered the SAC on April 24, 2026. The Answer included the right to compel arbitration as an affirmative defense. (Answer, ¶ 36.) One week later, on May 1, 2026, WLH filed a demurrer to the SAC that indicated its intent to file for arbitration. (Demurrer, p. 2.) One month after the demurrer, WLH filed the instant motion to compel arbitration on June 9, 2026.

Given the above, Plaintiffs fail to establish that WLH waived its right to arbitrate.

Minor Plaintiffs - “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: ...A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact.” (C.C.P. § 1281.2(c).)

Plaintiffs argue that Minor Plaintiffs are not bound to arbitrate their claims because they are not signatories to the Agreement, and contend that the Court should deny the motion because compelling arbitration against Robert and Elena while staying the action against Minor Plaintiffs runs the risk of conflicting rulings under C.C.P. § 1281.2(c). WLH argues that Minor Plaintiffs are not currently parties to the action, and as such, there is no possibility of inconsistent rulings.

WLH is correct that Minor Plaintiffs are not currently named as parties to this action under the operative complaint. The procedural history shows that Plaintiffs have failed to timely amend the SAC to properly name Minor Plaintiffs in this action, despite being afforded several opportunities to do so. Specifically, on June 10, 2026, the Court sustained the demurrer to the SAC and ordered Plaintiffs to appoint a guardian ad litem for Minor Plaintiffs within 20 days of its order, or by June 30, 2026. Plaintiffs failed to do so until one month later, on July 24 and 30, 2026. On July 30, 2026, the Court denied WLH’s ex parte application to dismiss Minor Plaintiffs from the action. At the hearing, the Court discussed the status of Plaintiffs’ amended complaint and guardians ad litem with counsel, and granted Plaintiffs 10 days leave to amend the SAC. However, as of September 4, 2026, Plaintiffs have failed to amend the SAC to properly name Minor Plaintiffs as parties to this action. As such, there is no risk of inconsistent rulings under the operative complaint.

Given the above, WLH has sufficiently established that a written arbitration agreement exists between all the named parties to this action, and Plaintiffs have failed to establish their defenses of waiver or inconsistent rulings. Plaintiffs do not raise any other defense to the Agreement, such as unconscionability.